

Sudesh Mishra v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 26 November 2014 · WRIT - C No. 63542 of 2014 · **EE directed to decide clause 6.5 objection within two weeks**

HEADNOTE

Against a revised bill the petitioner filed an objection purported to be under clause 6.5 of the U.P. Electricity Supply Code, 2005. Supply was disconnected and a demand notice dated 29 March 2014 issued without decision of that objection. The Division Bench disposed of the writ by directing the Executive Engineer to decide the objection within two weeks of production of a certified copy.

FACTUAL SUMMARY

Sudesh Mishra was issued a revised electricity bill and filed an objection purported to be under clause 6.5 of the U.P. Electricity Supply Code, 2005. He alleged that, without deciding that objection, the licensee disconnected supply and issued a demand notice dated 29 March 2014. He invoked the Allahabad High Court's writ jurisdiction against the State and the electricity authorities in respect of that disconnection and demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending billing objection to Executive Engineer

HOLDING

Where a consumer has filed an objection purported to be under clause 6.5 against a revised bill and alleges disconnection and a demand notice without decision of that objection, the writ court may dispose of the petition by directing the Executive Engineer to decide the objection within a fixed time, without adjudicating disconnection or the demand on merits. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

The pending clause 6.5 objection to the revised bill was sent to the Executive Engineer for decision within two weeks; the Court did not itself decide the bill, disconnection, or demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER DISCONNECTION AND THE DEMAND NOTICE DATED 29.03.2014, ISSUED WITHOUT DECIDING THE CLAUSE 6.5 OBJECTION, WERE ILLEGAL

¶ 1

NOT DECIDED — MERITS OF THE REVISED BILL AND OF THE PETITIONER'S PURPORTED CLAUSE 6.5 OBJECTION

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